MACQUARIE University

Topic 7: State Responsibility

LAWS2000/8015 International Law

In February 2024, 50 sovereign states (including Australia), from various regions of the world, drafted and negotiated a convention on pandemic prevention, preparedness and response.

Hypothetical for discussion

Following the successful drafting and a drawn-out negotiation process, Member States have agreed to the terms of the new *Convention on pandemic prevention, preparedness and response 2024 (see next page)*. Given the relevance and urgency of the matter, the Convention has swiftly received sufficient ratifications and has now entered into force.

In January 2026, WHO pandemic monitoring detected a new, concerning Covid-19 virus stream. Shortly thereafter, a lab in the country of Armadonia developed and trialled a safe and effective vaccine against the virus stream. The Armadonian lab is one of the many facilities owned by an innovative pharmaceutical company registered in Armadonia, known as Company X.

Company X has announced that it has produced a batch of 2 million vaccines, which it distributed in priority to developing countries Y and Z.

TASK: You are a legal counsel in DFAT's international law team representing the Australian government, which ratified the convention in May 2025. Consult the *Draft Articles on State Responsibility* and associated commentary as well as the Convention extracts (see below).

Advise the Australian Government on the following:

1. What is the primary legal obligation here?
2. Based on the given facts, is the act/omission a *prima facie* breach of an international legal obligation?
3. Can this act or omission be attributed to a State(s)?
4. Are there any possible grounds precluding wrongfulness?
5. Can Australia invoke responsibility?
6. If a state(s) is found to be in breach of an international obligation, what are the potential legal consequences?

Copyrighted material - do not share or circulate without permission.
Legal and/or disciplinary actions may be taken if this material is shared without Macquarie University's written permission.

MACQUARIE University

Convention on pandemic prevention, preparedness and response 2024[1]

Preamble

The contracting parties,

Recognising the need to improve pandemic preparedness and response,

Acknowledging the global rise and spread of pathogens with pandemic potential,

Reaffirming the provisions of the WHO Pandemic Influenza Preparedness Framework 2011,

Noting the need for a globally coordinated response to preventing and addressing pandemics,

Emphasising that protection against the pandemics needs to create a fair, transparent, equitable, efficient, effective system, on an equal footing,

Have agreed as follows:

Article 1. Objectives

The objectives of this Convention, to be pursued in accordance with its relevant provisions, are the sharing of pathogens with human pandemic potential; and access to vaccines and treatments and sharing of other benefits and by appropriate transfer of relevant technologies, taking into account all rights over those resources and to technologies, and by appropriate funding.

Article 18. Technical and Scientific Cooperation

1. The Contracting Parties shall promote international technical and scientific cooperation in vaccine development and pandemic preparedness through the appropriate international and national institutions.

2. Each Contracting Party shall promote technical and scientific cooperation with other Contracting Parties, in particular developing countries, in implementing this Convention, inter alia, through the development and implementation of national policies. In promoting such cooperation, special attention shall be given to the development and strengthening of national capabilities, by means of human resources development and institution building.

3. The Contracting Parties shall, subject to mutual agreement, promote the establishment of joint research programmes and joint ventures for the development of technologies relevant to the objectives of this Convention.

Article 21. Global Access Mechanism

1. Each Contracting Party, recognising the right to life of all peoples and the collective efforts needed to halt pandemics, shall cooperate in the context of global pandemics to ensure that all countries and peoples have access to the vaccines and treatments relevant to the particular pandemic.

2. In accordance with (1), all countries shall receive an initial allocation of vaccines and treatments as they become available. Subsequent allocation shall be prioritised taking into account the needs of particular countries and the vulnerabilities' of particular health systems.

3. The Contracting Parties, recognising that patents and other intellectual property rights may have an influence on the implementation of this Convention, shall cooperate in this regard subject to national legislation and international law in order to ensure that such rights are supportive of and do not run counter to its objectives.

[1] This is a fictional Convention modelled on the WHO's *Pandemic Influenza Preparedness Framework* (2011) and the *Convention on Biological Diversity* 1992 (i.e. you will not find this Convention online).

Copyrighted material - do not share or circulate without permission.
Legal and/or disciplinary actions may be taken if this material is shared without Macquarie University's written permission.